

**SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY**

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:
In the Matter of the Claim of
ARTHUR PALMER,

Petitioner,

-against-

THE CITY OF NEW YORK and NEW YORK
CITY POLICE DEPARTMENT
SERGEANT DOUGLAS CREIGHTON, OFFICER
FRANK DIFRANCO, OFFICER ERIC HAYDEN,
and OFFICER EDSON QUIC,

Respondents.
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Index No.:

**PETITION FOR A
SPECIAL PROCEEDING
TO PERMIT FILING OF
LATE NOTICE OF CLAIM**

Petitioner Arthur Palmer ("Petitioner" or "Mr. Palmer"), by and through his undersigned counsel, Wigdor LLP, as and for his Petition for Special Proceeding to Permit Filing of a Late Notice of Claim in this action against Respondents The City of New York (the "City"), and New York City Police Department ("NYPD") Sergeant Douglas Creighton ("Sgt. Creighton"), Officer Frank DiFranco ("Ofc. DiFranco"), Officer Eric Hayden ("Ofc. Hayden") and Officer Edson Quic ("Ofc. Quic") (Sgt. Creighton, Ofc. DiFranco, Ofc. Hayden and Officer Quic are referred collectively as the "Officer Respondents"), (the City and the Officer Respondents and referred together as "Respondents"), hereby states and alleges as follows:

1. This is an action seeking leave from this Court to file a late Notice of Claim against Respondents, pursuant to General Municipal Law § 50-e.

2. The proposed Notice of Claim is attached as Exhibit A to the Affirmation of Tanvir H. Rahman In Support of Petition to File Late Notice of Claim ("Rahman Aff.") (hereinafter referred to as the "Notice of Claim").

3. As detailed in the Notice of Claim, on April 24, 2013, at approximately 5:20p.m., after legally purchasing merchandise at the Macy's department store located Herald's Square, New York, New York, Petitioner, an adult African American male, was suddenly stopped, without any probable cause or other justification, blocks away from the store by the four Officer Respondents.

4. The Officer Respondents immediately demanded to look inside the shopping bags Petitioner was holding, while demanding that Petitioner produce identification and receipts for the items in the bags.

5. The Officer Respondents then seized the shopping bags from Petitioner, and proceeded to search through the bags. During this time, Petitioner was not allowed to leave the custody of the officers.

6. The Officer Respondents proceeded to falsely accuse Petitioner of having obtained the merchandise in the shopping bags through unlawful means, which was heard by numerous individuals, damaging, *inter alia*, Petitioner's reputation.

7. The Officer Respondents finally released Petitioner from their custody after being unable to uncover any ground by which to continue to detain and/or formally arrest him.

8. The officers then proceeded to inform Petitioner that he had been surveilled and followed from the time he was shopping within the Macy's department store, and was stopped on the street, blocks away from the store, because he had purportedly temporarily stood in an area within Macy's that was outside of the view of Macy's' surveillance cameras.

Petitioner's Late Filing of a Notice of Claim Against Respondents is Excusable

9. A court in its discretion may extend the time under GML § 50-e to serve a Notice of Claim. In exercising its discretion, the Court must focus on whether the movant has

demonstrated a reasonable excuse for its failure to file a timely Notice of Claim, whether the municipality acquired actual knowledge of the essential facts constituting the claim within ninety (90) days from its accrual or a reasonable time thereafter, and whether the delay would substantially prejudice the municipality in maintaining its defense on the merits. See Acosta v. City of New York, 39 A.D.3d 629 (2d Dept. 2007).

10. However, in determining whether to permit the filing of a late Notice of Claim, the presence or absence of any one factor under GML § 50-e is not determinative, and the absence of a reasonable excuse for the delay is not necessarily fatal. See Nardi v. County of Nassau, 18 A.D.3d 520 (2d Dep’t 2006).

11. Petitioner’s claim arose on April 24, 2013. As such, Petitioner was required to file a Notice of Claim by July 23, 2013, or within 90 days of April 24, 2013. (For ease of reference, “April 24, 2013” will be referred hereinafter as the “date of the incident”, and “July 23, 2013” will be referred to as the “90-day Notice of Claim filing deadline”).

12. However, Petitioner did timely, or within a reasonable time thereafter, put Respondents on actual notice of his claims.

13. In order to have actual knowledge of the essential facts constituting the claim, the public corporation must have knowledge merely of the facts that underlie the legal theory or theories on which liability is predicated in the notice of claim; the public corporation need not have specific notice of the theory of theories themselves. See Matter of Felice v. Easport/South Manor, 50 A.D.3d 138 (2d Dep’t. 2008).

14. Specifically, on May 17, 2013, merely 23 days after the date of the incident and well before the 90-day Notice of Claim filing deadline, Petitioner filed a complaint against Respondents with the Civilian Complaint Review Board (the “CCRB”). See Exhibit B to

Rahman Aff., (Complaint Report, CCRB Case No. 201304250); Affidavit of Merit of Arthur Palmer (“Palmer Aff.”), at ¶ 5.

15. As Exhibit B indicates, Petitioner provided the CCRB with information concerning the date, time and location of the incident, and that he was “stop[ped]” and “search[ed].” See Ex. B.

16. On May 20, 2013, Petitioner received a letter from Andrew Guinan, an Investigator with the CCRB, which indicated that Mr. Guinan had been assigned to investigate Petitioner’s claims against Respondents, and that his complaint may potentially be eligible for submission to the CCRB’s mediation program. See Exhibit C to Rahman Aff., (May 20, 2013 Letter from Andrew Guinan to Arthur Palmer); Palmer Aff., at ¶ 5.

17. On July 15, 2013, 82 days after the date of the incident, and again well before the 90-day Notice of Claim filing deadline, Petitioner spoke again to CCRB investigator Guinan, who informed him, in sum and substance, that the CCRB’s investigation had commenced, but that the CCRB had yet to receive an affirmative identification of the individual officers who were involved in his stop and search from the New York City Police Department. See Art Palmer Aff., at ¶ 6. The fact that the investigation was underway but was merely be stalled because the CCRB was waiting on the NYPD to identify the specific officer involved in Petitioner stop and search clearly indicate that the City of New York and/or the New York City Police Department had by July 15, 2013 (well before the 90-day filing deadline) been given actual notice of Petitioner’s claims.

18. Thereafter, on September 26, 2013, (which was just 65 days after the 90-day Notice of Claim filing deadline), the NYPD was specifically informed that the Officer Respondents, (who had by that time been identified as the subject officers in Petitioner’s CCRB

complaint), would be offered the opportunity to seek to resolve the complaint lodged against them by Petitioner Palmer through a CCRB-sponsored mediation. See Ex. D to Rahman Aff., (Correspondence from Lisa G. Cohen to Arthur Palmer confirming that Respondents were notified on September 26, 2013 that Mr. Palmer's complaint would be considered for mediation); Palmer Aff., at ¶ 7. As such, it is apparent that, by September 26, 2013, the NYPD had already *identified* the Officer Respondents who were the subject of Petitioner's complaint, and thus the City already had actual notice of Petitioner claims well before then.

19. As such, Petitioner submits, based on the timeline of events pertaining to Petitioner's CCRB complaint and the subsequent notifications made to Respondents of Petitioner's complaint, that Respondents were, *at the latest*, notified of Petitioner's claims just 65 days after the 90-day Notice of Claim filing deadline (July 23, 2013), and likely far earlier than that, and quite possibly before the 90-day Notice of Claim filing deadline. Thus, Respondents had actual notice of Petitioner's claims against them either within 90 days of the date of the incident (which took place on April 24, 2013), or within a reasonable time after the 90-day period expired.

20. Furthermore, Petitioner, who is not an attorney not has ever received any formal legal training, did not retain legal counsel prior to retaining undersigned counsel, nor was Petitioner aware or ever told that he needed to file a Notice of Claim with the City of New York within 90 days of the incident or else lose any legal claims he held against the City until he retained undersigned counsel in late-November 2013. See Palmer Aff., at ¶¶ 3, 8.

21. To deprive Petitioner of an opportunity to prosecute his claims would work a grave injustice and severe hardship, and leave Petitioner without any other remedy. Under the circumstances, in the interests of justice, and in the spirit of General Municipal Law §50-e (5), it

is respectfully submitted that the Court, in its discretion, grant Petitioner leave to file the annexed Notice of Claim. See Exhibit A to Rahman Aff. Respondents should be estopped from asserting untimeliness.

22. In McKenna v. City of New York, 154 A.D.2d 665, (2d Dep't. 1989), the Appellate Division reversed a lower court decision to disallow a late notice of claim involving false arrest and imprisonment. The Court decided that leave should be granted, citing the fact that members of the New York City Police Department participated in the acts giving rise to the claim, reports and complaints concerning the acts giving rise to the claim had been made, and there was no indication that the delay would result in prejudice to the municipality. In the case at bar, Respondents initiated the false arrest, false imprisonment and other unlawful acts alleged by Petitioner, and upon information and belief, already has in their possession all the facts necessary to investigate the claim.

23. Further, in this type of case, the respondents must show prejudice. If they do not, the motion should be decided in favor of petitioner. Montalto v. Harrison, 151 A.D.2d 652, 543 N.Y.S.2d 97 (2d Dep't 1989). In Montalto, the petitioner was allowed to file a late notice of claim. After noting that absence of an acceptable excuse was not necessarily fatal to the application, the Court stated that the defendant had not made a sufficient showing of prejudice warrant rejection of the application. No prejudice will or can be shown by the Respondents in this matter either, as they had timely notice of the facts, and they have already investigated the same, as demonstrated by their recent affirmative refusal to engage in a mediation facilitated by the Civilian Complaint Review Board. See Ex. E to Rahman Aff., (Correspondence from the CCRB to Arthur Palmer dated December 3, 2013 informing Mr. Palmer that the NYPD had determined that his complaint would not eligible for mediation).

24. Even without a finding of an acceptable excuse for delay in timely filing of Notice of Claim, leave to serve was granted in Toro v. New York City Housing Authority, 182 A.D.2d 358 (1st Dep't. 1992). Leave to serve a late notice of claim was granted where the City had acquired actual knowledge of all relevant facts and further failed to demonstrate prejudice by the injured party's delay. Lucas v. City of New York, 91 A.D.2d 637 (2d Dep't. 1982).

25. General Municipal Law Section 50-e(5) was intended to reduce some of the hardship incurred under the prior statute, was intended to be liberally construed, and provides more flexible criteria for the determination of a motion for leave to file a late notice of claim. Robb v. New York City Housing Auth., 71 A.D.2d 1000 (2d Dep't. 1979). The Appellate Division has stated that the statute should not "operate as a device to defeat the rights of persons with legitimate claims." Annis v. New York City Transit Auth., 108 A.D.2d 6643, 485 N.Y.S.2d 529 (1st Dep't. 1985).

26. Petitioner has furnished a reasonable excuse for his late Notice of Claim. He was unaware of the time limitations involving his claim.

27. This application is brought prior to the expiration of the statute of limitations for all of Petitioner's claims.

28. No prior application for the relief herein has been made.

WHEREFORE, Petitioner respectfully requests that this Court grant the relief requested herein in all respects, together with such other and further relief as the Court deems just and proper.

Dated: New York, New York
January 17, 2014

Respectfully submitted,

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